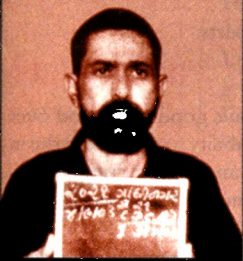
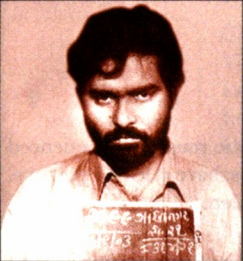


TO THE GALLOWS

On the evening of September 24, 2003, two heavily armed terrorists stormed into the Akshardham temple in Gandhinagar. They wreaked havoc, killing 3 security personnel and 29 civilians, including four children. The terrorists were finally killed close to midnight.



ADAM AJMERI



CHAND KHAN



ABDUL QAYOOM

THE ROAD TO JUDGEMENT

SEPT 24, 2003

Two terrorists storm the Akshardham temple in Gandhinagar. Kill 33 people.

SEPT 25, 2003

Both killed after night-long battle with commandos

AUG 29, 2003

Ahmedabad Crime Branch arrests five of the accused

NOV 25, 2003

Police submits chargesheet

JAN 26, 2004

Designated POTA court concludes testimony of 136 witnesses

JULY 1, 2006

POTA court awards death to three and jail to others

JULY 30, 2006

Accused appeal before Gujarat High Court

JUNE 1, 2010

The Gujarat High Court upholds the POTA court judgement

Patel and Ghulam Laheri are from villages known for their Wahabi madrasas and their radical maulvis. After the 2002 Gujarat riots, nearly a dozen students of the Kanthariya madrasa had travelled to Kashmir to take arms training from Wahabi militants supported by Pakistani intelligence agency, the Inter-Services Intelligence (ISI). Incidentally, Iqbal Patel's brother, Abdul Majid Boda, who had played a role in collecting funds for the attack in Saudi Arabia, was caught by the Gujarat Police in 2008 when he came to his village from Saudi Arabia to attend a wedding. The two-judge-bench led by Justices R.M. Doshi and K.M. Thaker also awarded jail sentence to the remaining three accused in the case—

Mohammed Shaikh, 39, who has been awarded life imprisonment, Altaf Malek, 36, and Abdulmiyan Kadri, 48, all from Ahmedabad.

The Saudi-based groups of Indian and Pakistani Muslims which actually planned the attack with the help of active militants of IET and JEM had held meetings at five different places in Riyadh and Jeddah before the Akshardham attack. As Rakesh Hathi, a travel operator, who lost both his parents in that attack put it: "As a victim, I feel that the remaining three, who have been sentenced to jail, should also have been awarded the death sentence. Even then this verdict sends out a stern message to terror-

ists and their sympathisers at a time when India is fighting a tough battle on the terror front."

Known socio-political activist Vidyut Thakar says: "The verdict is indeed very timely since it comes when India is emerging as a soft state against terror." The judges also made some crucial observations while commenting on the plight of the families of the accused who had been sentenced to death, saying: "The families of the accused will suffer just as much as the families of the innocents who had been killed by the terrorists. We wish that young people who are easily lured into committing crimes in the name of religion are made aware of the consequences that may befall them and their families."

The verdict is a tribute to the investigations of the Gujarat Police who in the past have seen their anti-terror measures being branded as anti-minority by vested interests. If the Gujarat Police played a major role in getting punishment for the accused in the Akshardham case, it had also played an equally crucial role in solving the mystery behind the serial blasts engineered by Indian Mujahideen and the Students

Islamic Movement of India (SIMI) in 2007-2008 across the country including Delhi and Ahmedabad. The verdict once again brought into focus the old debate over the need for POTA or a similar law to contain terrorists. It is significant that after the Akshardham attack in 2003, the state saw no terrorist incident until the serial blasts in July 2008. It is worth recalling that it was after POTA was repealed by the UPA Government and state police officers like D.G. Vanzara and N.K. Amin, who were ruthless in their pursuit of terrorists, were sent to jail following pressure from human rights activists, that terrorists struck in Gujarat. The examples also underline what we need to do to tackle terror effectively. ■